

АНАЛИЗ

Что на самом деле содержится в законопроекте Сената, который должен положить конец безумию в студенческом спорте?



«Большая десятка» во главе с комиссаром Тони Петитти (слева) и Комиссия по ценным бумагам и биржам под руководством Грега Санки в конце прошлой недели одобрили Закон о защите студенческого спорта. Кирби Ли / USA Today Sports, Reuters Connect



By **Chris Vannini**

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Многолетние и многомиллионные усилия по привлечению внимания Конгресса к студенческому спорту могут вскоре увенчаться успехом.

скандалам последних нескольких лет.

По крайней мере, таков план.

На прошлой неделе «Большая десятка» и Комиссия по ценным бумагам и биржам поддержали законопроект Сената, что стало ключевым препятствием для сенаторов, продвигающих этот закон. Они надеются, что Сенат проголосует по законопроекту на этой неделе, до начала месячного перерыва в работе, но сделать это будет непросто, несмотря на то, что лидер сенатского большинства Джон Тьюн (республиканец от штата Южная Дакота) в среду подал ходатайство о прекращении прений — это процедурный шаг, предшествующий голосованию. Если законопроект пройдет Сенат, после перерыва его ждут новые препятствия в Палате представителей, но вероятность того, что он станет законом, выше, чем когда-либо.

Но что на самом деле содержится в законопроекте? Все: от ограничений на трансферы до лимитов на расширение конференций, от ограничений на уход тренеров до якобы более жесткого ограничения на распределение доходов. Есть также пункт о дате проведения национального чемпионата по футболу.

Если за последние несколько месяцев вы не особо вникали в законодательную базу, вот краткий обзор ключевых положений, которые станут законом, если законопроект будет принят в нынешнем виде.

Ограничение на расширение конференций и создание Суперлиги

После безумной гонки по реорганизации конференций, которая несколько лет назад изменила спортивную географию колледжей, этот законопроект внесет поправки в Закон о спортивном вещании 1961 года, чтобы заморозить почти все текущие изменения. Конференции, чей доход превышает 700 миллионов долларов (так называемая «Большая четверка»: ACC, Big 12, Big Ten и SEC), будут ограничены 19 участниками, и ни одна команда из «Большой четверки» за последние пять лет не сможет перейти в другую лигу. Это означает, что любая команда «Большой четверки», которая захочет сменить конференцию, должна

В «Большой десятке» 18 команд, в Конференции атлантического побережья — 17, а в Юго-Восточной конференции и «Большой двенадцатке» — по 16. Этот законопроект, судя по всему, допускает реальное присоединение только Нотр-Дама, Коннектикутского университета или команды из «Группы шести». Кроме того, он значительно усложняет выход из конференции для Университета штата Флорида, Клемсонского университета, Университета Северной Каролины и других команд из Конференции атлантического побережья после того, как Университет штата Флорида и Клемсонский университет подали в суд на фоне обсуждения такой возможности всего несколько лет назад.

Законопроект также запрещает сторонним организациям объединять школы для создания новой конференции или ассоциации, то есть Суперлиги.



Прежде чем завоевать титул чемпиона страны, «Индиана» в прошлом сезоне выиграла чемпионат «Большой десятки». «Большая десятка», в которую входят 18 команд, является крупнейшей из «Большой четверки», а согласно Закону о защите студенческого спорта, количество команд в «Большой четверке» не должно превышать 19. Патрик Смит / Getty Images

Возвращение ограничений на трансферы

трансфер без необходимости пропускать год, а выпускникам — неограниченное количество трансферов. Таким образом, правила вернутся к тем, что действовали до недолгого изменения, введенного NCAA в 2021 году, до того, как суды разрешили неограниченные трансферы. Все игроки смогут перейти в другой университет в случае смены главного тренера или при наличии нарушений.

So while there would no longer be unlimited transfers for everyone, there would still be many paths to transfer, especially in the new world of five years of eligibility, which would also be enshrined as law with the age-based clock. The bill additionally gives the NCAA antitrust protection to enforce transfer rules, including tampering.

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Increasing revenue sharing, while adding a harder cap

limit to be used on a school's current players, plus another \$5 million capped pool exclusively for women's sports and nonrevenue sports, totaling nearly \$50 million per year.

In an attempt to close spending loopholes and to create a harder cap, the bill also adopts the House settlement's definition of an "associated entity" and requires school multimedia rights holders and third parties to provide signed certification that a school is not the source of NIL compensation to the athlete. This was the final change that got the SEC and Big Ten on board.

The bill also preempts the various state laws on NIL, eligibility and transfers that had complicated the NCAA's pursuit of a national standard for a level playing field.



A provision of the Protect College Sports Act would prevent coaches hired as head coaches by a different school — such as Lane Kiffin at LSU in 2025 — from acting on behalf of that school until the later of the end of that team's season or the end of the season of the team the coach is leaving. Tyler Kaufman / Getty Images

Preventing in-season coaching moves

Coaches leaving for other jobs before a season ends is nothing new in college football, but Lane Kiffin's acceptance of the LSU job before Ole Miss' College Football Playoff run drew so much attention that it made its way to Congress. The

season of the coach's prior team, whichever occurs later. The provision has been colloquially referred to as the "Lane Kiffin Rule" by people involved.

It's not only about head coaches leaving. The bill qualifies "any individual" who serves as football personnel accepting a head coaching job elsewhere. That means former Oregon coordinators Will Stein and Tosh Lupoi wouldn't have been able to do any work for Kentucky or Cal, respectively, until Oregon's season ended. Technically, these coaches can accept a new job, but they cannot recruit, make roster decisions, supervise staff or even publicly represent the new school in a football capacity until after the teams' final games. Penalties for violations of this include a one-season suspension and potentially more.

Could this slow down the college coaching carousel to put it on an NFL-like timeline? That's the idea, but it dramatically squeezes the timeline for certain new head coaches, given the early signing period in December and the lone transfer portal, which opens in early January.

An option to pool conference media rights

The bill gives conferences the right to pool all their TV rights into one package if it includes at least 75 percent of the teams in the FBS, along with antitrust protection under the Sports Broadcasting Act, which currently covers only pro sports.

You may have [seen Texas Tech megabooster Cody Campbell's commercials last fall](#) calling for this change to the SBA. The SEC and Big Ten have made clear they have

combined make up 25.4 percent of the FBS, enough to veto any such pooling.

If there is some new joint entity involving at least 75 percent of the FBS, there are additional requirements for schools to play a certain number of “historic rivals” within that new entity, depending on whether they were previously conference or out-of-conference games.

Moving up the national championship? Not quite

One line near the end of the bill raised some eyebrows, stating that the football postseason should “conclude not later than January 8 of any year, to the extent practicable.”

This clause is nonbinding. Coaches have called for a similar endpoint, and College Football Playoff staff have spoken with Congressional staff hoping to change this provision. A Republican Commerce Committee aide noted to *The Athletic* that it doesn’t preempt current media rights contracts. The current CFP deal runs through 2031, and national title sites through the 2029 season have been announced. So this is not expected to have any effect, at least anytime soon.

Capping agent fees

The bill would add NIL deals under the Sports Agent Responsibility and Trust Act to cap agent NIL fees at 5 percent of the value of the endorsement contract, while also limiting agency contracts that last beyond the player’s college eligibility.

as an athlete agent.”

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Big Ten, SEC finally green-light college sports bill, teeing up historic trip to Senate floor

With the Big Ten and SEC now on board, the bill has a chance of getting to the Senate floor next week for a vote.

The NCAA shall also maintain a publicly available searchable database of registered agents, and it would have the ability to decertify or fine agents for violations. There are additional requirements for what must be written out in an endorsement deal.

Athlete employment

There is just one line addressing athlete employment, stating, “This title is neutral on, and does nothing to alter, employee or non-employee status for student athletes.” This topic was a key issue that doomed the previous SCORE Act, which would’ve deemed them non-employees and therefore lacked Democratic support. This bill leaves the matter unresolved, with the hope of garnering enough Democratic support to finally pass a bill through Congress.

It’s the last best chance to do so before the midterm elections in November.

Chris Vannini has covered national college football issues and the coaching carousel for The Athletic since 2017. A co-winner of the FWAA's Beat Writer of the Year Award in 2018, he previously was managing editor of CoachingSearch.com.

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